

Act III Analysis: Critiquing the Salem Courtroom

Text: The Crucible by Arthur Miller | Focus: Judicial Rhetoric, Spectral Evidence & Procedural Injustice

Student Name: _____	Date: _____	Class Period: _____
Assigned Role: Legal Observer / Defense Critic	Act Focus: Act III (The Vestry)	Total Points: _____ / 50

Activity Objective: In Act III, the Salem meeting house is transformed into the General Court. As a critical courtroom analyst, your job is to evaluate how Judges Danforth and Hathorne subvert legal due process. Analyze the testimony, identify logical fallacies, evaluate procedural flaws, and construct formal legal objections as if you were defense counsel representing the accused.

Section 1: Courtroom Procedure Breakdown Matrix

Courtroom Incident / Testimony	Judicial / Rhetorical Flaw	Violation of Due Process	Critical Analysis & Student Critique
Hathorne Interrogates Martha Corey: <i>'How do you know that you are not a witch?' / 'If you do not know what a witch is, how do you know you are not one?'</i>	Begging the Question (Circular Reasoning)	Shifts burden of proof onto the defense; presumes guilt without corroborating empirical evidence.	<i>Complete your critique:</i> How does Hathorne's question trap the defendant regardless of her answer? _____ _____
Francis Nurse Presents Petition: Nurse hands Danforth a petition signed by 91 landowners attesting to the good character of Rebecca Nurse and Martha Corey.	Guilt by Association & Chilling Effect	Danforth orders arrest warrants for all 91 signers for 'examination,' treating character witnesses as subversives.	<i>Complete your critique:</i> Why does Danforth's reaction destroy the possibility of public petition or defense witness testimony? _____ _____
Giles Corey's Informant Testimony: Giles accuses Thomas Putnam of reaching for land by prompting Ruth to cry out against George Jacobs, but refuses to name his source.	Contempt of Court Manipulation	The court refuses to investigate the land-grab motive, focusing exclusively on Giles's refusal to divulge names.	<i>Complete your critique:</i> How does the court protect corrupt accusers while punishing whistleblowers? _____ _____
Abigail's 'Yellow Bird' Display: When Mary Warren testifies that the girls are faking, Abigail and the afflicted girls imitate Mary's words and claim a bird threatens them.	Red Herring & Spectral Manipulation	Admissibility of unprovable, subjective 'spectral evidence' overriding factual affidavits and rational cross-examination.	<i>Complete your critique:</i> Why does spectral evidence make a legitimate legal defense mathematically impossible? _____ _____

Section 2: Mock Legal Defense — Formulating Formal Objections

Instructions: Imagine you are John Proctor's appointed defense attorney. For each judicial statement from Act III below, identify the specific legal/rhetorical fallacy and write a formal legal objection refuting Deputy Governor Danforth.

Quote A (Danforth): *'A person is either with this court or he must be counted against it, there be no road between.'*

Identified Fallacy: False Dilemma / Either-Or Fallacy | **Legal Grounds:** Improper Polarization / Elimination of Due Process

Draft Your Formal Objection:
'Objection, Your Honor! This statement creates a false dichotomy because...'

Quote B (Danforth): *'Witchcraft is ipso facto, on its face and by its nature, an invisible crime... Who may possibly be witness to it? The witch and the victim. None them can be. Now we cannot hope the witch will accuse herself; therefore we must rely upon the victims.'*

Identified Fallacy: Begging the Question / Confirmation Bias | **Legal Grounds:** Reliance on Hearsay & Denial of Cross-Examination

Draft Your Formal Objection:
'Objection, Your Honor! By automatically crediting the victim's testimony without physical proof, the court...'

Section 3: Critical Synthesis & Modern Legal Comparison

Question 1 (The Epistemic Trap): In Act III, John Proctor presents Mary Warren's written affidavit stating 'I never saw no spirits, sir.' Why does Danforth view Mary's confession not as evidence of the girls' perjury, but as Satan attempting to subvert the court? How does this ideology make the court completely immune to truth?

Question 2 (Historical Parallel): Arthur Miller wrote *The Crucible* in 1953 during Senator Joseph McCarthy's HUAC hearings into alleged Communist infiltration. How does Danforth's requirement that accused witches 'name names' of other villagers mirror McCarthyite interrogation tactics?

Section 4: Courtroom Integrity Assessment Rubric

Grade Deputy Governor Danforth's judicial performance on a scale from 1 (Complete Subversion) to 4 (Model Justice):

Evaluation Category	Score (1-4)	Evidence & Justification from Act III Text
Impartiality & Neutrality	1 2 3 4	<i>Justify:</i> Did Danforth remain neutral, or did he protect the prosecution's witnesses?
Evidentiary Standards	1 2 3 4	<i>Justify:</i> Did the court demand physical proof, or accept uncorroborated spectral testimony?
Protection of Defense Rights	1 2 3 4	<i>Justify:</i> Were defense attorneys/lawyers permitted to cross-examine Abigail and the girls?